

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND
OOCL (EUROPE) LIMITED, *Respondents*.

DOCKET NO. 23-02

Served: December 23, 2024

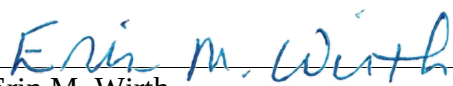
ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER EXTENDING TIME FOR COMPLAINANT TO RESPOND TO MOTION TO STRIKE BRIEF

On December 20, 2024, Respondents filed a Motion to Strike (“Motion”) seeking to strike Complainant’s opening brief for exceeding the page limit set by the December 5, 2024, Order on Complainant’s Motion to Expand Briefing Page Limits. The motion states that the parties conferred regarding the motion and that “Complainant is opposed to the relief sought herein and has requested an extension of time to respond to the foregoing motion to January 17, 2025. Respondents are not opposed to the requested extension.” Motion at 1.

Complainant had previously sought leave to increase the length of the opening brief from 80 to 140 pages. An extension of 25 pages was granted, so that Complainant’s brief could be 105 pages. It appears that the opening brief is 96 pages, under the limit. However, the opening brief contains citations to a separate document labeled “Proposed Findings of Fact and Conclusions of Law.” This document appears to include 33 pages of legal analysis. It is noted that many of the citations in the opening brief include a citation to the separate conclusions of law as well as a legal citation. Complainants will need to explain whether the conclusions of law include any legal citations not also cited in the opening brief and whether the brief can be read without referring to the separate conclusions of law.

Given the timing of the motion, the extension will be granted. On January 17, 2024, Complainant should file its response to the motion or file a revised opening brief that includes all legal citations and is within the page limit. Also on January 17, 2024, the parties should file a joint status report proposing any extension to the remaining briefing dates. Respondents’ Motion to Exclude Testimony will be addressed with the merits of the proceeding.


Erin M. Wirth
Chief Administrative Law Judge